

Court No. - 3

Case :- WRIT - C No. - 12723 of 2022

Petitioner :- Smt. Santosh Kumari

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Santosh Kumar Yadav

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner, learned standing counsel for the State respondents and Sri Mukesh Kumar Singh, learned counsel for the respondent nos. 3 & 4.

This writ petition has been filed praying for the following reliefs :

"i) Issue a writ, order or direction in the nature of certiorari quashing the impugned ex-parte demand order dated 31.10.2020 amounting Rs.2,71,884/- passed by respondent no.3 and its all consequential proceedings.

ii) Issue a writ, order or direction in the nature of mandamus directing the respondent no.3 to decide the petitioner's objection dated 12.11.2020."

From the records, it appears that the petitioner has earlier filed Writ C No.34740 of 2018 (Smt.Santosh Kumari Vs. State of U.P. and 3 Others) which was dismissed by order dated 30.10.2018, as under :

"Heard Sri Babu Lal Ram, learned counsel for the petitioner, learned Standing Counsel for the respondents 1 and 2 and Sri Mukesh Kumar Singh, learned counsel for the respondents 3 and 4.

The petitioner in the writ petition is aggrieved by the demand for a sum of Rs. 3,79,636/- towards electricity dues. The grievance is that her electricity connection was disconnected on 24.01.2008 and thereafter there is no electricity supply to her house, yet a demand for Rs. 3,79,636/- has been sent by the electricity department to her.

In our view, the petitioner has a remedy of file her objection before the respondent No.3- Executive Engineer, Electricity Power Distribution Madhuanchal Vidut Vitran Nigam Limited Vifuy Vityram Khand-II, District- Budaun, in view of the provisions of part 6.5 of the U.P Electricity Supply Code, 2005. The petitioner may, therefore, approach the Executive Engineer with her objection.

The writ petition is dismissed"

It further appears that since grievance of the petitioner was not redressed by the respondents, therefore, the petitioner filed another Writ C No.1950 of 2019 (Santosh Kumari Vs. State of U.P. and 3 Others), which was allowed by order dated 31.1.2019 as under :

"Heard Sri Babu Lal Ram, learned counsel for the petitioners and Sri Mukesh Kumar Singh, learned counsel for the respondents no. 3&4 and the learned Standing Counsel for the respondents no.1&2.

The petitioner in the writ petition is seeking quashing of the demand notice dated 12.12.2018/15.12.2018.

On 22.01.2019 this Court has passed the following order :-

"Heard Sri Babu Lal Ram, learned counsel for the petitioner, learned Standing Counsel for the respondents no. 1 & 2 and Sri Mukesh Kumar Singh, learned counsel for the respondents no. 3 & 4.

The petitioner in the writ petition is seeking quashing of the demand notice dated 12.12.2018/15.12.2018. Earlier the petitioner filed writ petition no. 34740 of 2018 challenging the demand notice of Rs.379636/-. That writ petition was disposed of by the Court vide order dated

30.10.2018 with a direction to the Executive Engineer to decide the petitioner's objection filed under Section 6.5 of the Electricity Supply Code, 2005. According to the petitioner, she has filed her objection dated 28.11.2018 before the Executive Engineer, Electricity Power Distribution, Madhyanchal Vidyut Vitran Khand-II, District Budaun, respondent no. 3 but without passing any order a fresh demand notice, which is impugned in the present writ petition, has been issued.

Counsel for the respondents no. 3 & 4 is directed to obtain instructions in the matter as to whether petitioner's objection dated 28.11.2018 has been disposed of or not and if disposed of, what order has been passed.

Put up as fresh on 31 January, 2019 to enable the counsel for the respondents no. 3 & 4 to obtain instructions in the matter. "

Learned counsel for the respondents fairly stated before the Court that the objections submitted by the petitioner under Clause 6.5 of the Electricity Supply Code, 2005 has not been decided till date.

We, therefore, quash the demand notice dated 12.12.2018/15.12.2018 (Annexure no.7 to the writ petition) and direct the respondent no.3-Executive Engineer, Electricity Power Distribution Madhyanchal Vidyut Vitran Nigam, Ltd. Budaun to consider and decide the petitioner's objections in accordance with law within three months from today.

The writ petition stands allowed."

According to the petitioner since the order of the writ court in Writ C No.1950 of 2019 was violated by the respondents, therefore, she filed a Contempt Application (Civil) No.4103 of 2019 which was disposed of by order dated 11.07.2019 giving liberty to the petitioner herein to move a fresh application. The petitioner submitted an application dated 22.07.2020 which has been disposed of by the impugned order dated 31.10.2020 i.e. during the period of Pandemic Covid 19.

Perusal of the impugned order dated 31.10.2020 leaves no manner of doubt that the respondent no.3 has passed the impugned order without considering the objection of the petitioner. Respondent no.3 merely commented "*Sweekar Nahi hai*" or "*Sambandhit Nahi hai*". Even the other points of the objection have also been vaguely decided. Therefore, prima facie the impugned order can not be said to be a valid order.

We permit the petitioner to submit a fresh objection taking all the grounds as may be available to her, within two weeks' from today along with a certified copy of this order and with a proof of deposit of Rs. 1,00,000/- towards dues.

In the event such a representation/objection is filed within the stipulated period alongwith the proof of deposit as aforesaid, it shall be decided by the respondent no.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner. The petitioner shall fully cooperate in the proceedings.

The impugned order shall abide by the fresh order as may be passed by the respondent no.3 as directed above.

In the event the petitioner does not submit objection alongwith proof of deposit within the stipulated period, the respondents shall be at liberty to proceed with the recovery from the petitioner, in accordance with law, pursuant to the impugned order.

The writ petition is **disposed** of.

Order Date :- 15.7.2022/vkg